

		violate FRCP, rule 83, which permits district courts to adopt local rules to govern their practice so long as the local rules are consistent with the federal rules. Local Rule 41 is consistent with FRCP, Rule 41(b) in that both rules acknowledge the district court's discretion to dismiss an action with or without prejudice under FRCP, rule 41(b) and under the court's inherent powers. The Central District acted well within its authority to adopt a rule that governs its practice when it issues a dismissal for failure to prosecute without specifying whether the dismissal is with or without prejudice. Plaintiff shall give notice of this ruling.
105	De La Rosa vs. PLAN888 Inc 2025-01495101	Motion to Be Relieved as Counsel of Record Attorney Anthony Cartee and law firm Cartee, LC's motion to be relieved as counsel of record for Defendant Plan888, Inc. d/b/a Plan B is GRANTED, effective upon the filing of the proof of service of the signed order upon the client. (Code Civ. Proc., § 284, subd. 2.) Moving counsel shall lodge with the Court an updated proposed order including all information required to be listed in ¶ 6, including the client's current telephone number. An Order to Show Cause is set for May 28, 2026 at 9:30AM in Department CX102. At the hearing, the Court will strike Defendant Plan888, Inc. d/b/a Plan B's answer for its failure to appear through counsel unless it (1) substitutes in new counsel before the hearing or (2) appears at the hearing and shows good cause otherwise. (See <i>Merco Construction Engineers, Inc. v. Mun. Ct.</i> (1978) 21 Cal.3d 724, 730 [corporation may not represent itself and must appear through a licensed attorney]; <i>CLD Construction, Inc. v. City of San Ramon</i> (2004) 120 Cal.App.4th 1141, 1145, 1150 [same, and "court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time"].) Moving counsel shall give notice of this ruling and file proof of service with the Court within 5 court days.